

Court No. - 29

Case :- WRIT - C No. - 33108 of 2019

Petitioner :- Mool Chandra, Industrial Training

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Manoj Kumar Pandey

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Vivek Agarwal,J.

Heard Sri Manoj Kumar Pandey, learned counsel for the petitioner.

Sri Mahboob Ahmad, Advocate has accepted notice on behalf of respondent Nos.2 and 3.

The petitioner is facing recovery of Rs.1,12,619/- as electricity dues in respect whereof a recovery citation dated 16.09.2019 has been issued. The submission of learned counsel for the petitioner is that he has approached the Executive Engineer to accept the aforesaid dues in installments vide his application dated 18.09.2019 but instead of passing any order thereon the recovery has been served on the petitioner.

Notwithstanding the fact that Clause 6.14 of the U.P. Electricity Supply Code, 2005 empowers the Executive Engineer to realize the dues in installments, if necessary, as the Executive Engineer has failed to exercise the said power and the petitioner is ready and willing to pay the entire dues in installments, we are disposing of the writ petition with the consent of the parties with the direction to the petitioner to deposit a sum of Rs.37,619/- forthwith and the balance amount in three installments of Rs.25,000/- each payable in the month of November, December and January provided he continues to pay the current bills regularly.

The petition is **disposed off**.

Order Date :- 19.10.2019

Ashutosh